

26STLCOO700 26STLCOO700

County: los-angeles

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Case Number: 26STLCOO700 Hearing Date: June 25, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff Zhiwei Chen's (1) Motion to Deem Requests for Admission Admitted; and (2) Motion to Compel Responses to Special Interrogatories and Requests for Production, are denied.

Analysis:

Plaintiff Zhiwei Chen ("Plaintiff") filed the instant action against Defendant Five Points Towing, LLC ("Defendant") on February 2, 2026. Defendant filed its Answer on March 12, 2026. On May 5, 2026, Plaintiff filed the instant (1) Motion to Deem Requests for Admission Admitted; and (2) Motion to Compel Responses to Special Interrogatories and Requests for Production.

On June 18, 2026, Defendant filed an Ex Parte Application for Order Continuing Hearing on Motions, which the Court denied on June 23, 2026. (Minute Order, 06/23/26.) The Court ruled that it would consider Defendant's arguments at the hearing on the instant Motions. (Ibid.) Plaintiff filed a Supplemental Notice with respect to the Motions on June 22, 2026.

Discussion

Plaintiff's discovery Motions are supported by a proof of service stating that they were served on Defendant through Attorney Neil C. Evans, Esq. on May 18, 2026, by first-class mail. (Proof of Service, filed 06/10/26.) They are further supported by Plaintiff's declaration attesting to service of the discovery requests on March 17, 2026, also by first-class mail to Attorney Evans. (Motions, Chen Decl., ¶¶2-3 and Exhs. A-B.) On April 22,

2026, Plaintiff sent Defendant a meet and confer letter to inquire about the lack of any response. (Id. at ¶4 and Exh. C.)

Initially, the

Court notes that Plaintiff filed a combined motion to compel responses with respect to two separate sets of discovery: (1) Special Interrogatories; and (2) Requests for Production. Filing a request to compel responses to two separate sets of discovery as a single motion creates the following problems. First, it negatively impacts the Court's calendar by placing more motions on the calendar than slots have been provided by the online reservation system. Second, it results in confusion in the motion papers regarding the arguments and evidence with respect to each request. Finally, combining multiple discovery sets into a single motion allows the moving party to avoid paying the requisite filing fees. Statutorily required filing fees are jurisdictional and "it is mandatory for the court clerks to demand and receive statutorily required filing fees." (See *Duran v. St. Luke's Hospital* (2003) 114 Cal.App.4th 457, 460.) Although Plaintiff has been granted a fee waiver in this action, they should still make separate motion reservations to address separate sets of discovery.

Additionally, the Court finds that the discovery requests served on Defendant do not comply with Code of Civil Procedure section 94, which allows only 35 written discovery requests in the Limited Civil Court unless otherwise authorized by court order or by stipulation. (Code Civ. Proc., § 94, subd. (a); § 95.) Plaintiff served Defendant with more than 35 requests for admission (14), special interrogatories (12), and requests for production (12) combined. (Motions, Chen Decl., Exhs. A.) The attached proofs of service also show that Plaintiff served Defendant with Form Interrogatories, which would further increase the number of requests. (Id. at Exh. B.) Based on the foregoing, the instant discovery Motions are denied. The Court will not grant motions to compel discovery, or motions to deem admissions admitted, if propounded in violation of the Code of Civil Procedure.

Finally, the Court does not find that Plaintiff's Supplemental Notice, admitting to service of Defendant's responses to the Requests for Admission prior to the hearing date, changes the outcome of the Motion to Deem Requests for Admission Admitted. Plaintiff asks for an award of sanctions in the Supplemental Notice, but the number of discovery requests remains in excess of that allowed by the Code of Civil Procedure and the Motion to Deem Requests for Admission Admitted itself does not include any notice of a

request for sanctions, as required by Code of Civil Procedure section 2023.040.

Conclusion

Plaintiff Zhiwei Chen's (1) Motion to Deem Requests for Admission Admitted; and (2) Motion to Compel Responses to Special Interrogatories and Requests for Production, is denied.

Moving party to give notice.